



Article: 31

Warrant Article Title:

HOME RULE LEGISLATION / 61B EXEMPTION

Warrant Article Text:

To see if the Town will vote to authorize and request the Select Board to file Home Rule Legislation or other Special Legislation exempting the Town from the requirement to accept and grant applications for valuation, assessment, and taxation of land under the provisions of Mass. Gen. Laws Chapter 61B while maintaining the Town's first refusal option and ability to collect any and all applicable conveyance and roll-back taxes for applications previously granted under Mass. Gen. Laws Chapter 61B; or take any action related thereto.

Requested By:

Carmine Granucci and ten registered voters

Report Excerpt:

Vote and comment to Town Meeting - Favorable Action (3-1)

Mr. Helmuth recused himself.

Mr. DeCoursey voted in the negative.

The Board voted 3-1 (with Mr. Helmuth recusing himself) to recommend favorable action on this article that seeks to authorize the filing of home rule legislation to exempt Arlington from the provisions of G.L. c. 61B that allow for owners of certain types of land defined as recreational to apply for and receive a reduced property tax valuation. The Board heard from the article's petitioner, Carmine Granucci, who reported that this statute has over the years provided a significant benefit to the Belmont and

Winchester Country Clubs, entities that both own land in Arlington.

The Board expressed some concern regarding the applicability of this particular action on what is a matter of state law. During the Board's discussion, it became apparent that due to the statute's requirements regarding type of use and lot size, the only properties in Arlington that qualify for relief under the statute are the golf courses mentioned by the petitioner. Ultimately, the Board determined that the potential impact of elimination Chapter 61B in Arlington, estimated by Mr. Granucci at approximately \$18,254 based on current tax rates, would be a benefit to the town and not unreasonably impact the listed entities. Accordingly, the Board voted 3-1 for favorable action on this article. It should also be noted the Board requested that the Board of Assessors review the warrant article as it relates to exemption applications they process. The Board of Assessors voted unanimously to support Article 31 at their April 6, 2026, meeting.

Vote Language:

That the Town does hereby request and authorize the Select Board to file Home Rule Legislation to provide substantially as follows:

“AN ACT UPDATING THE TAX TREATMENT OF
RECREATIONAL LANDS
IN THE TOWN OF ARLINGTON

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same as follows:

- a) Notwithstanding any special or general law to the contrary, sections 2, 2A, and 16 of chapter 61B of the General Laws pertaining to the valuation, assessment, and taxation of recreational land (as defined in that chapter) shall not apply

in the Town of Arlington's assessment or taxation of recreational land after July 1, 2028.

- b) Beginning July 1, 2028, landowners shall not submit, and the Town of Arlington Board of Assessors shall not allow, applications under sections 3, 5, or 6 of chapter 61B of the General Laws for eligibility for taxation at the rate applicable to recreational land.
- c) The provisions of sections 1, 4, 7-15, and 17-18 of chapter 61B of the General Laws, including the provisions pertaining to changes in use, taxation upon conveyance, and roll-back taxes shall continue to apply in full force to land previously assessed or taxed as recreational land under chapter 61B by the Town of Arlington."

[Select Board Report](#)